

SENATE No. 452

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ensuring charter school integrity.

PETITION OF:

NAME:

Bruce E. Tarr

DISTRICT/ADDRESS:

First Essex and Middlesex

SENATE No. 452

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 452) of Bruce E. Tarr for legislation relative to ensure the integrity of charter schools. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 352 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ensuring charter school integrity.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 89 of Chapter 71 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting, in section (h), the following paragraph: -

3 Within 30 days of the approval of a new commonwealth charter school in any
4 community, the board shall issue a written confirmation that the school meets all requirements
5 set out in subsection (b), (e) and (f) of this section and in the implementing regulations, and a
6 summary of the reasons therefore.

7 SECTION 2. Said section 89 of said Chapter 71, as so appearing, is hereby further
8 amended, in subsection (l), by inserting at the end thereof the following sentence:-

9 Charter schools shall not solicit applications for enrollment by offering money or gifts of
10 any monetary value as an incentive for application.

11 SECTION 3. Said section 89 of said Chapter 71, as so appearing, is hereby further
12 amended, in section (ee), by striking the first sentence and inserting in place thereof the
13 following sentence: - The board may revoke a school's charter if the school has not fulfilled any
14 conditions imposed by the board in connection with the grant of the charter, the school has
15 violated any provision of its charter, or the board has substantially violated any provision of this
16 section or its implementing regulations in granting the charter.

17 SECTION 4. Said section 89 of said Chapter 71, as so appearing, is hereby further
18 amended by adding at the end thereof the following new subsection:-

19 (nn) The board shall develop procedures and guidelines for the waiver of any regulations;
20 provided, however, that no waiver shall be issued except at the written request of the charter
21 applicant or at the written request of the board itself, both of which shall only be for exceptional
22 circumstances. Said waiver must be accompanied by a written explanation of the reasons for the
23 waiver, and may only be issued by a 2/3 vote of the board.